

SCHEDULE OF AMENDMENTS

Body Corporate Operational Rules for Body Corporate 120066

APPLICATION

1. All previous Body Corporate Rules and the Body Corporate Operational Rules in schedule 1 of the Unit Titles Regulations 2011 ("Regulations") are revoked and replaced with these Rules.

INTERPRETATION

2. In these rules:

- (a) Terms defined in the Unit Titles Act 2010 ("Act") and Regulations shall have the same meaning as in the Act and Regulations unless these Rules or context requires otherwise;
- (b) These rules are binding on all Owners of units in the Unit Title Development as well as the employees, agents, invitees, licencees and tenants of all Owners of units in the Unit Title Development.
- (c) Headings are included for convenience and information only and do not form part of the rules;
- (d) References to the singular include reference to the plural and vice versa and references to the male, female or neuter genders are references to the other genders;
- (e) References to any action by the Body Corporate or an Owner include references to permitting or allowing that action;
- (f) Where two or more persons are bound by a provision in these rules that provision will bind those persons jointly and severally; and
- (g) References to a person include an individual, company, corporation, partnership and a trust in each case whether or not having separate legal identity.

3. The following words shall have the meanings set out below:

- (a) "Body Corporate" means the Body Corporate 120066 (Westpoint Apartments);
- (b) "Bond" means an amount equal to ten per cent of the value of the relevant structural alteration (reasonably estimated by the body corporate committee) which may be used by the Body Corporate in payment of any expenses incurred by it directly or indirectly as a result of the relevant Owner's failure to observe or comply with the rules and requirements of the Body Corporate in relation to such structural alterations. The Bond or the balance of it shall be refunded to the relevant Owner upon presentation to the Body Corporate of a code compliance certificate in respect of such structural alterations.



- (c) "Manager" means, the manager appointed from time to time by the Body Corporate to provide secretarial and administrative service to the Body Corporate.
- (d) "Owner" means, in relation to any Unit in the Unit Title Development, the registered proprietor, occupier or mortgagee in possession of a stratum estate in the Unit under the Land Transfer Act 1952 and includes their employees, agents, licensees, lessees, tenants and invitees;
- (d) "Unit" means the principal units and accessory units on deposited unit plan 120066 (North Auckland Registry) separately or together as context requires;
- (e) "Unit Title Development" means the Units and common property on deposited unit plan 120066 (North Auckland Registry) at 65 Sarsfield Street, Herne Bay, Auckland; and
- (f) "Vehicle" means any car, truck, van, motorcycle, caravan or other vehicle and includes trailers and boats.

USE

4. An Owner of a Unit shall not use nor permit the use of the Unit for any purpose other than residential accommodation and shall comply or procure compliance with the use requirements of the District Plan of the Auckland Council corresponding to such use.

5. An Owner of a Unit shall not use nor permit the use of the Unit for any purpose which may be illegal or injurious to the reputation of the Unit Title Development or of the Owners of Units or which may interfere with the peaceful enjoyment of the common property and another Unit by the Owner thereof or which may interfere with the general management of the Unit Title Development. For the avoidance of doubt this rule prohibits the use of a Unit as a brothel or for prostitution.

6. An Owner will not without the prior written consent of the Body Corporate bring into or install in or permit or suffer to be brought in or installed in his Unit anything whatsoever of such weight nature or description as will impose or cause stress or strain or weight likely to damage weaken or cause structural damage to the Unit Title Development or any part of it.

AERIALS

7. Outside wireless and television aerials may not be erected without written permission of the Body Corporate. Radio, television and other electric appliances shall be properly maintained and adjusted to ensure minimum interference of such appliances in other Units.

ALTERATIONS AND BUILDING WORKS

8. An Owner who undertakes repairs, maintenance or other building works in the Unit must comply with all Body Corporate directions including but not limited to hours of work, the storage and removal of building materials and the payment of a Bond to the Body Corporate.

9. An Owner must not erect, fix or place any aerial, satellite dish, air-conditioning, heating, ventilation or security device, fitting or plant on, to or through the exterior of the Unit or the common property without the prior written consent of the Body Corporate.

SIGNS AND NOTICES

10. Owners of Units shall not paint, affix or display any signs, advertisements, notices, posters, placards, banners or like matter to or on any part of the Unit Title Development nor do anything to vary the external appearance of their Units without the prior written consent of the body corporate committee.

UNIT TITLE DEVELOPMENT DIRECTORY

11. (a) All requests for consideration of any particular matter to be referred to the body corporate committee or to the Body Corporate shall be directed to the Body Corporate Manager and not to the Chairperson or any members of the body corporate committee. Owners of Units shall not directly instruct any contractors or workmen employed by the Body Corporate unless authorised to do so.
- (b) An Owner who carries out any repair, maintenance, additions, alterations or other such work must ensure that the contractors or other such persons employed by the Owner cause minimum inconvenience to all other Owners and ensure that the work is carried out in a proper and workmanlike manner and in accordance with the relevant Auckland Council bylaws, the Building Act 2004 and the Body Corporate rules and requirements relating to such works..

OBSTRUCTION

12. (a) The pathways and drives on the Unit Title Development and any easement giving access to the Unit Title Development shall not be obstructed by any of the Owners of Units or used by them in a manner likely to cause damage or undue wear and tear to the paved or sealed surfaces or for any other purpose than the reasonable ingress and egress to and from their respective units or accessory units and no Owner of a Unit shall park or stand or permit to be parked or stood upon common property any Vehicle except with the consent in writing of the body corporate committee. An Owner of a Unit shall not obstruct nor deposit nor throw anything on any path, hall, stairway, corridor, lobby, entrance way or lift in the Unit Title Development nor injure or soil any part thereof.
- (b) An Owner must not interfere with or obstruct any reasonable or lawful use or enjoyment of the common property by other Owners.
- (c) Before any furniture, piano, safe or heavy object or article is moved into or out of any Unit at least 48 hours notice must be given to The Manager and the moving of same (including the location and parking of removal Vehicles) must be done in the manner including the placement of protective screens and at the time directed by the Body Corporate.



INTERIOR MAINTENANCE

13. An Owner of a Unit shall not employ any contractor or workman for the purpose of repairing altering or making good any part of his Unit or any services rendered thereto other than contractors or workmen duly appointed or approved by the Body Corporate or to perform any work in connection therewith except under the supervision and to the satisfaction of the Body Corporate which may specify conditions under which the work shall be done provided however that nothing in this Rule shall be deemed to prevent the Owner from employing his own interior decorator for the purpose only of decorating or re-decorating the interior of his Unit PROVIDED THAT the Owner may nominate certain tradesmen for the purpose of repairing or making good any part of his Unit on the occasion of an emergency and, subject to the Body Corporate accepting those nominations, the Owner may employ any such nominated tradesmen for the purpose of effecting such emergency repairs.

WINDOWS AND WASHING

14. (a) All windows shall be kept clean and if broken or cracked shall be promptly replaced by the Owner of the Unit at his expense with fresh glass of the same or better quality and weight as that being replaced.
- (b) An Owner shall not hang any clothes, washing, bedding or other articles on or about the common property or hang such articles on or about his unit which are visible from any adjacent street, the common property or any other Unit or Units.

WATER

15. An Owner of a Unit shall not waste water and shall ensure that all water taps in his unit are promptly and properly turned off after use.

BLOCKAGE OF PIPES, ETC.

16. The water closets, conveniences and other water apparatus including insinkerators and dishwashers, waste pipes and drains shall not be used for any purpose other than those for which they were designed and constructed and no sweeping or rubbish or other unsuitable substance shall be deposited in them. Any damage or blockage resulting to such water closets, conveniences, water apparatus, waste pipes and drains from misuse or negligence shall be borne by the Owner whether the same is caused by his own actions, or those of members of his household or his servants, agents, tenants or invitees.

NOTICES OF ACCIDENTS, DEFECTS, ETC.

17. An Owner of a Unit shall give the Body Corporate prompt notice of any accident to or defect in the waterpipes, gas pipes, electric installations, fixtures or the Unit Title Development which come to his knowledge and the Body Corporate shall have authority by its agents or servants having regard to the urgency involved to examine or make such repairs or renovations as they may deem necessary for the safety and preservation of the Unit Title Development as often as may be necessary.



CLEANLINESS

18. An Owner of a Unit shall not deposit anything or throw any dust or beat any mat or carpet on or in or obstruct the use or enjoyment by other Owners of the common property.

19. An Owner of a Unit shall not throw or allow to fall or permit or suffer to be thrown or fall any paper, rubbish, cigarette butts or other material or liquids in the lifts, out of the windows or doors or down the staircase from balconies, from the roof or in passageways of the Unit Title Development. Any damage or costs for cleaning or repair caused by a breach of the provisions of this clause shall be borne by the Owner responsible for such damage or costs.

20. All Units shall be kept clean and maintained in a manner appropriate to high cost residential accommodation. All practicable steps shall be taken to prevent infestation by vermin and/or insects.

22. The Owner of each Unit shall only employ a cleaning contractor either nominated or first approved in writing by the body corporate committee.

23. The Body Corporate shall use its best endeavours to cause all external surfaces (including windows) and the common property (including all floors and floor coverings, lifts, stairways and outdoor areas) of the Unit Title Development to be cleaned in a proper and workmanlike manner and such cleaning will include the regular removal of rubbish and garbage from the Unit Title Development PROVIDED HOWEVER the Body Corporate shall not be responsible to an Owner for any loss or damage to the Unit Title Development or effects of an Owner caused by anyone employed to provide such cleaning services.

23. If any Owner requires cleaning of external window surfaces of a Unit in excess of the frequency in each year to be determined by the Body Corporate the cost of such additional cleaning shall be paid for by the Owner requesting additional cleaning or if more than one Owner is involved then proportionately by each Owner.

RUBBISH DISPOSAL

24. (a) The rubbish and recycling bins provided by Auckland Council shall be placed only where approved by the Body Corporate and used only for the purpose for which they are provided.

(b) Empty bottles, boxes, used containers and similar items shall be stored tidily and so far as possible out of sight where directed by the Body Corporate.

CARPARKING

25. (a) Car parks shall be kept tidy and free of all litter and no outside carparking spaces shall be used for storage of any kind and no maintenance or repair work other than minor maintenance work shall be carried out on any Vehicle located therein or within the Unit Title Development.

(b) Owners shall not park nor permit to be parked any Vehicle in any carparking space other than the designated carparking spaces applicable to their principal units and no Vehicle shall be parked in

such a manner as to obstruct access or egress to any other carparking space or cause obstruction of the common property.

NO DANGEROUS SUBSTANCES

26. An Owner of a Unit shall not bring to, do or keep anything in his Unit which shall increase the rate of fire insurance on the Unit Title Development or any property on the Unit Title Development or which may conflict with the laws and/or regulations relating to fires or any insurance policy on the Unit Title Development or any property on the Unit Title Development or the regulations or ordinances of any public authority for the time being in force.

27. An Owner of a Unit shall not use any chemicals, burning fluids, acetylene gas or alcohol in lighting or heating his Unit, nor in any other way cause or increase a risk of fire or explosion in his Unit.

NOISE

28. An Owner of a Unit shall not make or permit any objectionable noise in, on or about the Unit Title Development including the common property or interfere in any way with the peaceable enjoyment of other Owners of units or those having business with them. In particular no Owner of a Unit shall hold or permit to be held any social gathering in his unit in which there shall occur any noise which interferes with the peace and quietness of any other Owner of a Unit, at any time of day or night. The volume of musical instruments, radio or television receivers and stereo equipment or any other electronic device or medium shall be controlled at all times so that the sound is reasonable and does not cause annoyance to Owners of other Units.

29. People leaving a Unit at any time after 11.00pm shall be requested by the Owner thereof to leave quietly. Quietness also shall be observed when an Owner of a unit returns to the Unit Title Development late at night or in the early hours of the morning.

30. In the event of any unavoidable noise in a Unit at any time the Owner of that unit shall take all practical means to minimise annoyance to other Owners of Units by closing all doors, windows and curtains of his Unit.

31. An Owner of a Unit shall not permit any auction sale, garage sale or such like activity to be conducted or to take place in his Unit or in the Unit Title Development without the written consent of the Body Corporate.

SECURITY

32. An Owner of a Unit shall:

- (a) Deposit one key of his Unit and garage with the Body Corporate;
- (b) Securely fasten all doors and windows to his Unit on all occasions when the unit is left unoccupied and the members of the Body Corporate shall have the right to enter and fasten the same if left unsecurely fastened; and
- (c) Observe and perform all rules and regulations relating to the security of the Unit Title Development and any common property as the Body Corporate may from time to time prescribe.

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BODY CORPORATE'S POWER OF ENTRY

33. For the purposes of section 80(1)(a) of the Act, the Body Corporate shall give at least one (1) day's notice in writing of its intention to enter a Unit unless there is an emergency in which case notice may not be given. The Body Corporate in exercising this power shall ensure that its servants, agents and employees cause as little inconvenience to the Owner of the Unit as is reasonable in the circumstances.

NOTICE OF RULES

34. A copy of these Rules shall be exhibited in a prominent place in any Unit leased or made available for letting.

SPECIAL RULES FOR COMMON PROPERTY

35. The Body Corporate may make rules relating to the common property and in particular in relation to lifts, grounds, amenities including the swimming and spa pools and carparks not inconsistent with these Rules and the same shall be observed by the Owners of Units unless and until they are disallowed or revoked by a majority resolution at a general meeting of the Body Corporate. Without limiting the generality of the foregoing any person on common property shall be adequately clothed and shall not use language or behave in a manner likely to cause offence or embarrassment to another Owner or to any person lawfully using the common property or any part of it.

36. The duties and obligations imposed by these Rules on an Owner of a Unit shall be observed not only by the Owner but also by the guests, servants, employees, agents, children, invitees, licensees and tenants of such Owner. The Owner shall in any event be responsible for any breach of the duties and obligations imposed by these Rules by such categories of people.

37. An Owner must not use any facilities contained in the common property or any assets and improvements that form part of the common property for any use other than the use for which those facilities, assets and improvements were designed and constructed.

BLINDS, CURTAINS

38. An Owner of a Unit shall not erect external blinds nor hang curtains and/or blinds visible from outside the unit unless those curtains have a backing of such colour and design approved by the Body Corporate. An Owner of a Unit shall not install renovate and/or replace a curtain backing without having the colour and design of the same approved by the Body Corporate.

LIFTS

39. An Owner of a Unit shall observe the terms of any notice or instructions displayed in the lift by authority of the body corporate committee or of any statutory authority and shall observe and comply with any notice or instructions of the manufacturer of the lift.

AIR CONDITIONING

40. Where air conditioning equipment is installed in a Unit the Owner shall at all times comply with the operating instructions and when necessary for the efficient operation of the equipment, ensure that the windows of the Unit are closed and that sun protection devices (if any) are in the proper operational position.



LETTING

41. For the purposes of ensuring adequate and proper control and management of Units and the Unit Title Development at all times every Owner shall:

- (a) When creating a lease or tenancy or other right of occupation in favour of some other person other than his immediate family:
 - (i) Notify the Manager in writing of the name of any such person; and
 - (ii) Ensure that the proposed lessee or tenant has received and perused a copy of these Rules; and
 - (iii) Enter into a written agreement in a form as recommended or approved by the Body Corporate that the lessee or tenant as the case may be will abide by such rules and in particular that the lessee or tenant will not create any undue noise or nuisance in his use of the Unit or the common property.

EMERGENCY CONTACT

42. For the purposes of complying with section 85 of the Act the Owner of a Unit shall:

- (a) Advise the Body Corporate of the Owner's full name, contact details and preferred method of contact (which may be by post or by email); or
- (b) If the Owner is a corporation, advise the Body Corporate of the full name, contact details and preferred method of contact of the manager, secretary or other responsible person employed by the Owner; or
- (c) If the Unit is held on trust, advise the Body Corporate of the full names, contact details and preferred method of contact of all of the trustees of the trust; and

shall keep the Body Corporate promptly informed of any change of all such details.

FIRE DRILLS AND EVACUATION PROCEDURES

43. The Body Corporate shall have the right to require the Owner to perform from time to time fire drills and observe all necessary and proper emergency evacuation procedures and the Owner and persons under the control of the Owner shall co-operate with the Body Corporate in observing and performing such rules and procedures.

INFECTIOUS DISEASES

44. In the event of any infectious disease which may require notification by virtue of any Statute Regulation or Ordinance happening in any Unit the Owner of such Unit shall give written notice thereof and any other information which may be required relative thereto to the Body Corporate and shall pay to the Body Corporate the costs incurred by the body corporate committee of disinfecting and sanitising the Unit and any other part of the Unit Title Development required to be disinfected and sanitised and replacing any article or thing the destruction of which may be rendered necessary by such disease.

Schedule of Amendments

The body corporate operational rules are amended as follows:

The Body Corporate Operational Rules for Body Corporate 120066 are amended by deletion of the current Rule 5 and the Substitution with the new Rule 5 as detailed below:

An owner of a Unit shall not use nor permit the use of the Unit;

(a) for any purpose which may be illegal or injurious to the reputation of the Unit Title Development or of the owners of the Units. This provision prohibits the use of a Unit for prostitution or other disreputable activities;

(b) in a manner which may interfere with the peaceful and quiet enjoyment of the common property and or any other Unit; or

(c) in a manner which may cause a nuisance or other disruption, annoyance or safety hazard to other residents of the Unit Title Development (including smoking in any form or of any substance or otherwise causing any noxious substance to emanate from a Unit and or any part within it and the Common Area); or

(d) which may interfere with the general management of the Unit Title Development.



NOTICE OF CHANGE TO BODY CORPORATE OPERATIONAL RULES

Section 106, Unit Titles Act 2010

Unit Plan: 120066
Body Corporate Number: 120066 (Westpoint Apartments)
Supplementary Record Sheet: [NZ69C/265]

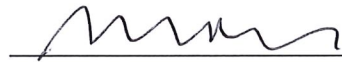
Notice

The Body Corporate gives notice that the body corporate operational rules are changed as specified in the attached schedule of amendments.

The Changes have been made in accordance with an ordinary resolution at the body corporate general meeting held on 8th June 2018.

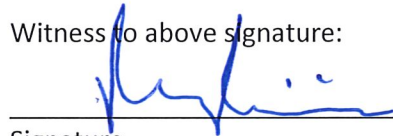
Body Corporate 120066

by:



Body Corporate Committee Chairperson

Witness to above signature:



Body Corporate Committee Member

Signature



Occupation



Address

Date: 5/7/18